

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Judith Le	Team: Squad #08	CCRB Case #: 201700037	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☒ O.L. ☐ Injury
Incident Date(s) Tuesday, 12/27/2016 6:20 PM	Location of Incident: Melrose Avenue and East 163rd Street	18 Mo. SOL 6/27/2018	Precinct: 42
Date/Time CV Reported Tue, 12/27/2016 7:39 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/30/2016 11:16 AM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Corey Wooten	06551	951002	042 PCT
2. POM Domingo Arjona	05689	944331	042 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. SGT Carlos Rosario	4581	933294	042 PCT
2. POF Rebecca Talavera	12704	961346	042 PCT
3. POF Stephanie Alba	19604	958228	042 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Corey Wooten	Abuse: Police Officer Corey Wooten stopped § 87(2)(b)	A . Exonerated
B . POM Domingo Arjona	Abuse: Police Officer Domingo Arjona stopped § 87(2)(b)	B . Exonerated
C . POM Corey Wooten	Force: Police Officer Corey Wooten used physical force against § 87(2)(b)	C . Unfounded
D . POM Corey Wooten	Force: Police Officer Corey Wooten used physical force against § 87(2)(b)	D . Exonerated
E . POM Corey Wooten	Off. Language: Police Officer Corey Wooten made remarks to § 87(2)(b) based upon her gender.	E . Unsubstantiated
F . POM Domingo Arjona	Abuse: Police Officer Domingo Arjona threatened § 87(2)(b) with the use of force.	F . Alleged Victim Uncooperative

Case Summary

On December 27, 2016 at approximately 6:20 p.m., § 87(2)(b) and her brother, § 87(2)(b) were walking down Melrose Ave. near 163rd Street in the Bronx, when they saw an unmarked vehicle containing two plainclothes officers, PO Corey Wooten and PO Domingo Arjona of the 42nd Precinct. PO Wooten and PO Arjona were canvassing the area for a robbery suspect and § 87(2)(b) allegedly fit the suspect description. PO Wooten got out of the vehicle, approached § 87(2)(b) and asked if he could speak to him. In response, § 87(2)(b) began running. The officers allegedly followed (**Allegations A and B**). PO Wooten was chasing after § 87(2)(b) on foot while § 87(2)(b) continued walking on Melrose Ave. After § 87(2)(b) looped back, § 87(2)(b) saw PO Wooten running towards her and intercepted him. § 87(2)(b) tapped PO Wooten twice on the chest and asked him what was going on. In response, PO Wooten allegedly began repeatedly striking § 87(2)(b) in the head (**Allegation C**). He then purportedly tried to trip her and body slammed her against the car (**Allegation D**). After placing § 87(2)(b) in handcuffs, PO Wooten allegedly leaned in and called her a “little cunt” (**Allegation E**). § 87(2)(b) did not see § 87(2)(b) again until the conclusion of the incident. He later told her that PO Arjona had allegedly threatened to shoot him (**Allegation F**).

Video footage was obtained on December 27, 2017 by the Richard H. Magnum Early Learning Center external camera, located at 383 East 162nd Street in the Bronx (see Board Review #1). The video is time-stamped at 6:21 p.m. and runs 02:09 minutes. There is no sound accompanying the video and the lighting is extremely poor.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- This case was not suitable for mediation due to injuries sustained by § 87(2)(b)
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

- A notice of claim for § 87(2)(b) was filed with the NYC Office of the Comptroller and will be added to the case file upon receipt.
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Civilian and Officer CCRB Histories

- PO Wooten has been a Member of Service for five years and has not been a subject in any previous CCRB complaints (see Board Review #4).
- PO Arjona has been a Member of Service for nine years and has had nine prior allegations involving four cases. In CCRB case 201002696, a substantiated allegation of abuse (retaliatory summons) received a NYPD disposition of instructions and penalty of command discipline – B. Two substantiated allegations for abuse (frisk) and abuse (stop) also received NYPD dispositions of instructions (see Board Review #5).
- This is § 87(2)(b)'s first CCRB complaint (see Board Review #6).
- This is § 87(2)(b)'s first CCRB complaint (see Board Review #7).

Potential Issues

§ 87(2)(b) who shares a telephone number with § 87(2)(b) was scheduled for his in-person statement on January 23, 2017. On January 23, 2017, when the undersigned called § 87(2)(b) to confirm his interview, he stated he could not come in to CCRB because of Metro card fare. The interview was rescheduled for January 27, 2017 and the undersigned mailed § 87(2)(b) a Metro card and appointment confirmation letter. On January 27, 2017, the undersigned spoke to § 87(2)(b) who stated that § 87(2)(b) was not coming in to the CCRB because he still had not received the Metro card. The undersigned asked § 87(2)(b) to confirm when he had received the Metro Card. On February 1, 2017, the undersigned again called § 87(2)(b) who stated that she had had a falling out with § 87(2)(b). She directed the undersigned to call § 87(2)(b) via the mother of his child, § 87(2)(b). The undersigned called § 87(2)(b) on February 1, 8, 21, 2017. Callback messages were left to an automated server. On March 2, 2017 the undersigned emailed § 87(2)(b) regarding the status of § 87(2)(b) and she replied that they were still not speaking. To date, § 87(2)(b) has not contacted the CCRB to provide a statement.

Findings and Recommendations

Allegation A - Abuse: Police Officer Corey Wooten stopped § 87(2)(b)

Allegation B - Abuse: Police Officer Domingo Arjona stopped § 87(2)(b)

It is undisputed that PO Wooten and PO Arjona stopped § 87(2)(b) § 87(2)(g)

The 911 radio message (see Board Review #8) for the incident shows that at the <00:06> mark, an Officer says to the 911 Dispatcher: Pick-up for a robbery on East 161st Street and Park Ave. Male c/v. At the <01:25> mark, Officer to Sergeant re: description and direction of flight: 3 males, one female, one wearing sweats and a dark-colored jacket. At the <02:10> mark, 911

Dispatcher: Acknowledgement, again, in regards to this robbery. Three males, one female, one wearing gray sweats, dark colored jacket. Last seen fleeing north on Teller from 161 and Park. At the <02:30> mark, Officer: All males are black. Female light-skinned. At the <04:56> mark, Anti-crime: Let me get one unit on 163 and Melrose. At the <5:00> mark, 911 Dispatcher: What unit is this? At the <05:03> mark, Anti-crime: Crime. At the <05:06> mark, 911 Dispatcher: 42-C, do you copy, 163 and Melrose? At the <05:30> mark, Anti-crime: We have a unit now . . . No further 163 and Melrose.

A map of the incident location (see Board Review #9) reveals the distance between the location of the robbery and 163rd Street and Webster as .2 miles.

§ 87(2)(b) (see Board Review #10) testified that she and § 87(2)(b) were walking along Webster Ave. and Melrose Ave. near 163rd Street § 87(2)(b) after visiting a check-cashing service when § 87(2)(b) noticed an unmarked “detectives car” drive by and look at them. The car then made a U-turn and drove towards them. Less than five seconds later a plainclothes white male, identified through investigation as PO Wooten, exited the vehicle and approached § 87(2)(b) and her brother. § 87(2)(b) noted that PO Wooten did not have any identification on him, and at the time she did not know that he was a police officer. Another plainclothes male, identified through investigation as PO Arjona, remained in the driver seat. PO Wooten, without identifying himself as a police officer, greeted § 87(2)(b) and asked if he could speak to him. In response, § 87(2)(b) fled. PO Wooten and the unmarked vehicle began pursuing him down the street. Although at the time § 87(2)(b) did not know why her brother had been stopped, she later overheard PO Wooten tell other officers that he and PO Arjona didn’t have anything to do so they decided to pull § 87(2)(b) and § 87(2)(b) over. He also said that § 87(2)(b) fit the description for a robbery that had occurred on 169th Street in the Bronx.

PO Wooten (see Board Review #11) stated that he and PO Arjona were driving in an unmarked vehicle when they received a radio run for a robbery involving a stolen phone. Another sector had the victim, who stated that the perpetrators were a black male with gray sweats and a dark colored jacket and a female fleeing northbound from East 162nd Street and Park Ave. PO Wooten and PO Arjona were a few blocks away, so they decided to canvass the area. As they were going northbound on Melrose Ave., they noticed a male, identified through investigation as § 87(2)(b) fitting the description provided. He was with § 87(2)(b) who was wearing all black. They were about a block and a half from where the robbery had occurred. PO Wooten and Arjona slowed down and PO Wooten locked eyes with § 87(2)(b) who was staring at the vehicle. § 87(2)(b) and § 87(2)(b) began to turn and pick up their walking speed. PO Wooten and PO Arjona made a U-Turn and pulled up behind them. PO Wooten identified himself as a police officer by showing the shield around his neck and saying, “Police.” He then said, “Hey, what’s up?” § 87(2)(b) replied, “What’s up,” and whispered something to § 87(2)(b). PO Wooten began opening his car door and asked § 87(2)(b) if he could speak to him. Immediately, § 87(2)(b) took off. PO Wooten stayed in the vehicle, and turned on the lights and sirens. He and PO Arjona followed § 87(2)(b) onto Cortlandt Ave. § 87(2)(b) then doubled back. PO Wooten jumped out of the car to chase him on foot so that they wouldn’t lose him and PO Arjona turned the car around to try and catch him.

PO Arjona (see Board Review #12) testified that he and PO Wooten were serving as a back-up unit for a robbery in progress, in the vicinity of 162nd Street and Park Ave. He recalled that the

description stated a female and male. PO Arjona was operating the vehicle and he and PO Wooten were canvassing the area with their lights on. They were driving when they made eye contact with § 87(2)(b) and a female identified through investigation as § 87(2)(b). PO Arjona could not remember who first identified them and if they gave them any instruction. As soon as § 87(2)(b) and § 87(2)(b) saw the officers they began running southbound. PO Wooten decided by himself to get out and follow on foot. PO Arjona followed in the car, driving about 10-15 mph. His windows were rolled down and he issued verbal commands, saying, "Stop! Let me talk to you. What's going on? Just stop. Police, police." He was also pressing his siren and whooping his car in case § 87(2)(b) and § 87(2)(b) did not realize he was a cop. He did not know if PO Wooten was issuing any instructions. At some point, § 87(2)(b) ran past § 87(2)(b) and PO Arjona continued to follow him. They went about a block on 162nd Street until § 87(2)(b) stopped in the middle of the block because he was out of breath. PO Arjona got out of his vehicle, thanked § 87(2)(b) for stopping and explained the situation. He asked him to bear with him and cooperate, which § 87(2)(b) did.

In *People v. Pitman*, 102 A.D.3d 595 (2013), officers received a radio report that three men had committed a robbery and fled into a park. The description provided was limited to race, gender and number. Officers then saw defendant and two other men exit the other side of the park. Despite the limitations of the descriptions, the Court found that the officers had a founded suspicion that these men might be the three robbers. When officers turned their car around and began to approach the men, defendant fled. The Court held that these circumstances elevated the level of suspicion to reasonable suspicion of criminality and justified pursuit (see Board Review #13). Under NY Criminal Procedure Law (CPL §140.50), where a police officer entertains a reasonable suspicion that a particular person has committed, is committing or is about to commit a felony or misdemeanor, the CPL authorizes a forcible stop and detention of that person (see Board Review #14).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] It
is therefore recommended that **Allegations A and B** be closed as **Exonerated**.

Allegation C - Force: Police Officer Corey Wooten used physical force against § 87(2)(b)
Allegation D - Force: Police Officer Corey Wooten used physical force against § 87(2)(b)
It is undisputed that § 87(2)(b) approached PO Wooten as he was in pursuit of § 87(2)(b) § 87(2)(g)
§ 87(2)(g) [REDACTED]



SnagIt Video.mp4

Video footage (see Board Review #1) obtained on December 27, 2017 from the Richard H. Magnum Early Learning Center shows at the <0:01> mark, a person, identified through investigation as § 87(2)(b) runs down the sidewalk off-screen. At the <0:08> mark, as § 87(2)(b) runs out of the camera's visibility, a man, identified through investigation as PO Wooten, appears to be struggling with a female, identified through investigation as § 87(2)(b). At the <00:10> mark, § 87(2)(b) strikes PO Wooten on the arm. At the <00:12> mark, PO Wooten grabs § 87(2)(b) and as she appears to resist, pushes her, back first, against the front of a nearby car. § 87(2)(b) and PO Wooten appear to struggle against the car. PO Wooten appears to be on top of § 87(2)(b) but the view is obstructed by a tree. At the <00:47> mark, § 87(2)(b) is now facing the car, and PO Wooten moves her to the back of the car. § 87(2)(b) appears to still be resisting. At the <00:54> mark, PO Wooten grabs § 87(2)(b)'s arms back to handcuff her. PO Wooten then continues to hold § 87(2)(b) against the car.

A 911 call (see Board Review #15) was placed by § 87(2)(b) at 7:05 p.m. At the <00:03> mark she says to the 911 Operator: Hello. I just got beat up by a cop. I'm on 156th and Cortlandt Avenue. At the <00:54> mark: I ran into [the police] in the street and they thought that my brother had robbed somebody because they said something about the description, but he was walking with me. They said stop right there. My brother ran. I was walking and then he sat there and said that I was running, which I did not. I was trying to figure out what was going on. He said mind your own business. Then he beat me on my head, trying to really body slam me. Like my head is dizzy right now and it's not ... § 87(2)(b) begins crying] I didn't even know what was going on. He beat me up for no reason. At the <03:18> mark to EMS: On my head and on my ankle, because he tried to scoop me and body slam me. My ankle is hurting and my head is throbbing because he kept beating on my head over and over ... my head is throbbing.

§ 87(2)(a) PHL § 18(6), § 87(2)(b)

§ 87(2)(b) (see Board Review #10) testified that after her brother ran off, she didn't know what was going on and continued walking on Melrose Ave. On 163rd Street, she saw her brother loop back with PO Wooten running behind him. She did not see PO Arjona and believed he was still driving around. § 87(2)(b) ran to the corner to speak to PO Wooten. § 87(2)(b) firmly tapped PO Wooten twice on the chest and asked him why he was chasing her brother. § 87(2)(b) specified that she only tapped, and did not hit PO Wooten. PO Wooten responded to her motions by repeatedly striking the front left side of her head with his right hand, making contact with his knuckles four or five times. § 87(2)(b) attempted to get him off of her and screamed for help. PO Wooten, while still striking § 87(2)(b) then unsuccessfully tried to trip her to the ground with his right foot. PO Wooten then tried to body slam her. He pushed her against a parked vehicle,

causing her back to hit and break the vehicle's side view mirror. PO Wooten then turned § 87(2)(b) around and attempted to handcuff her. During this time, § 87(2)(b) briefly tussled with PO Wooten and tried to rock back and forth. PO Wooten did not say anything to § 87(2)(b) and radioed for backup. § 87(2)(b) stated that it was only then that she realized PO Wooten was an officer. Six to seven officers responded to the scene and § 87(2)(b) heard PO Wooten tell the other officers that she had hit him. § 87(2)(b) denied doing so, and was frustrated that none of the officers would believe her. § 87(2)(b) later went to the hospital because she felt a throbbing pain. She left without receiving treatment because the wait was taking too long, but the next day § 87(2)(b) woke up with an unbearable pain and returned to the hospital for treatment.

PO Wooten (see Board Review #11) stated that after he saw § 87(2)(b) running behind him, he instructed her to stay back. He was still trying to chase § 87(2)(b) and § 87(2)(b) was yelling and asking why he was chasing her brother. She told him to leave. PO Wooten could still hear footsteps behind him and saw § 87(2)(b) was approximately three feet behind him. PO Wooten repeatedly instructed her to stay back, but § 87(2)(b) did not listen so PO Wooten stopped and faced her. Her demeanor was agitated and aggressive. § 87(2)(b)'s hands were up in a fighting stance with her fists clenched and she was cursing at him and telling him to leave her brother alone. PO Wooten was a bit confused by her stance, which he interpreted as § 87(2)(b) wanting to fight him. He went to grab her forearms or wrists, but before he could grab her, she pulled them away and struck him with her hands on the side of his face. PO Wooten then grabbed her by her forearms. § 87(2)(b) tried to pull her arms and body away. PO Wooten was trying to figure out an area that could better contain § 87(2)(b) and decided to push her against a car since it was the closest thing to them. He did not trip or body slam her, but instead used the minimal amount of force that he could. Once they were against the car, § 87(2)(b) was still moving around and PO Wooten found it difficult to grab her arms since she was so skinny. She was trying to pull away and separate her body from PO Wooten's. He estimated that this lasted for about a minute. He then turned § 87(2)(b) around and handcuffed her. § 87(2)(b) then calmed down. PO Wooten then held his forearm against her back to hold her against the car since she had previously tried to get away. He called for additional units. PO Wooten stated he never pressed § 87(2)(b)'s head against the car nor smashed her head. PO Wooten stated that he later spoke to § 87(2)(b) about her hurting him. He did not see any visible injuries on § 87(2)(b) and did not hear her say anything about needing medical attention.

PO Talavera (see Board Review #17) and PO Alba (see Board Review #18) did not recall the incident.

Patrol Guide Procedure 221-02 states that officers should apply no more than reasonable force necessary to gain control (see Board Review #19).

§ 87(2)(g)
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. It is therefore recommended that **Allegation C** be closed as *Unfounded*.

§ 87(2)(g)

. It is therefore recommended that **Allegation D** be closed as *Exonerated*.

Allegation E - Offensive Language: Police Officer Corey Wooten made remarks to § 87(2)(b) based upon her gender.

In the video (see Board Review #1), at the <01:35> mark, PO Wooten appears to lean towards § 87(2)(b) as if to say something, and in response she begins to struggle again.

In § 87(2)(b)'s 911 call (see Board Review #13) at the <02:14> mark, she states to the 911 Operator: [One officer] got out and tried to chase my brother. I was chasing behind him to see what was going on and he sat there and he called me a little cunt and everything.

§ 87(2)(b) (see Board Review #10) testified that as she was handcuffed, while she was still pressed against the car, PO Wooten leaned into § 87(2)(b) and said, "you want to hit me you little cunt?" § 87(2)(b) responded, "I didn't hit you at all." § 87(2)(b) stated that PO Wooten made the remark softly and no one around her heard him.

PO Wooten (see Board Review #11) stated that he did not call § 87(2)(b) a cunt or use any offensive language towards her.

PO Arjona (see Board Review #12) noted that after conducting the stop of § 87(2)(b) he met back up with PO Wooten, who was standing with § 87(2)(b) and writing her a summons. He did not hear PO Wooten call her a "little cunt."

Patrol Guide Procedure 203-09 states that officers must "be courteous and respectful" in their conduct with the public (see Board Review #20).

§ 87(2)(g)

It is therefore recommended that **Allegation E** be closed as *Unsubstantiated*.

Allegation F - Abuse: Police Officer Domingo Arjona threatened § 87(2)(b) with the use of force.

It is undisputed that PO Arjona stopped § 87(2)(b) § 87(2)(g)

§ 87(2)(b) (see Board Review #10) reported that § 87(2)(b) later told her that one of the officers had threatened to shoot him.

PO Arjona (see Board Review #12) estimated that his interaction with § 87(2)(b) lasted five minutes in total. After § 87(2)(b) stopped running, PO Arjona got out of his car and asked him what was up. PO Arjona noted that he was the only officer that interacted with § 87(2)(b) during this time and did not know where PO Wooten was. PO Arjona explained that a person had just been robbed and informed § 87(2)(b) that he fit the description. He said that someone was going to drive-by and if they did not identify § 87(2)(b) he was all good. PO Arjona stated § 87(2)(b)'s demeanor was pretty cool. Sector 44-C then drove by and conducted a show up from their car. The party identified § 87(2)(b) as negative. PO Arjona then apologized to § 87(2)(b) for stopping him and went back to his RMP. He did not threaten to shoot § 87(2)(b) nor hear any of the other officers that arrived for the show-up threaten to shoot him.

§ 87(2)(g)

It is recommended that **Allegation F** be closed as ***Victim Uncooperative***.

Squad: 8

Investigator: _____
Signature Print Date

Squad Leader: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date